MODULE 1 · KNOW YOUR RIGHTS

Police Station Rights

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Getting stopped or questioned by the police is one of the most intimidating things that can happen to a teenager, mostly because nobody explains what's actually allowed and what isn't. Knowing your rights doesn't make you anti-police. It just means nobody, on either side, gets confused about what's fair.

1. If the Police Stop You on the Street

- They can ask your name and address. You should answer calmly and truthfully.
- They cannot search you without a valid reason, and any search of a woman must be carried out by a woman police officer, at a place that respects her privacy.
- You can calmly ask which police station they're from and why you're being stopped. This is a reasonable question, not a challenge.
- If you're under 18, the police are expected to inform a parent or guardian and treat you as a minor under the Juvenile Justice Act, not as an adult offender.

2. If You're Taken to a Police Station

This is the part almost nobody explains, and it's the part that matters most.

1. You have the right to know why you're being detained or arrested. Ask directly, and keep asking politely until you get a clear answer.

2. You have the right to inform a family member or friend about where you are. The police are legally required to let you make this call.

3. You have the right to consult a lawyer, and in serious situations you should ask to do so before answering detailed questions.

4. You cannot be forced to sign a blank paper or a confession. Never sign anything you haven't fully read and understood.

5. If you are arrested, you must be produced before a magistrate within 24 hours. The police cannot hold you indefinitely without this.

6. You cannot be beaten, threatened, or mistreated to extract a confession. This is illegal, regardless of what you're accused of.

If You're a Minor (Under 18)

India's Juvenile Justice Act treats anyone under 18 differently from adults, on purpose.

- You cannot be kept in a regular police lock-up or jail with adults.
- You must be produced before a Juvenile Justice Board, not a regular criminal court.
- A parent, guardian, or a Child Welfare Officer should be informed and involved.
- The focus of the law is meant to be correction and protection, not punishment.

3. What a Real Conversation Might Sound Like

Here's a realistic example of standing up for your rights without escalating anything.

Officer: *Come with us to the station, we need to ask you some questions.*

You: *Sure, can I know which station and why? I'd also like to call my parents to let them know.*

That's it. That's the whole move. Calm, clear, and on the record. You're not refusing to cooperate, you're cooperating while making sure your rights are respected.

4. What NOT To Do

- Don't run, argue aggressively, or resist physically, even if you believe you're right. Sort it out through the proper process, not on the street.
- Don't sign any document you haven't read and understood, no matter how much pressure you feel.
- Don't assume silence will be held against you unfairly, but also don't overshare details before speaking to a lawyer or parent if the matter is serious.

5. Filing a Complaint If Your Rights Were Violated

If you believe the police overstepped, mistreated you, or ignored these rights, you can escalate it.

1. Approach the State Human Rights Commission or the National Human Rights Commission (NHRC), which handles complaints against police misconduct.

2. You can also approach the Superintendent of Police or file a written complaint at a higher police office if the local station isn't responsive.

3. For serious cases, courts also accept direct complaints of police excess.

National Human Rights Commission (NHRC) · *file a complaint online against police misconduct*

NALSA (National Legal Services Authority) · *free legal aid, including for minors and first-time cases*

A Few Myths, Busted

Myth	Fact
The police can arrest anyone without any reason.	Police need a valid reason or a warrant in most cases. Even for arrests without a warrant, they must record and justify the reason.
You have to answer every question the police ask, on the spot.	You must give your name and basic details. Beyond that, you can choose to wait for a lawyer before answering further questions.
A confession made at the police station is always valid in court.	Confessions made to police officers, without a magistrate present, generally can't be used as evidence in court.

Useful Links

National Human Rights Commission (NHRC) · *complaints against police misconduct*

NALSA Free Legal Aid · *free lawyers and legal help, especially for minors*

Juvenile Justice Act overview · *Ministry of Women and Child Development, for how minors are treated in law*

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